

		318; <i>Donabedian v. Mercury Ins. Co.</i> (2004) 116 Cal.App.4th 968, 994.) The question of plaintiff's ability to prove the allegations in the complaint, or possible difficulties in making such proof, is of no concern in ruling on a demurrer. (<i>Committee on Children's Television, Inc. v. General Foods Corp.</i> (1983) 35 Cal.3d 197, 213-214.) The sole issue raised by a general demurrer is whether the facts pleaded state a valid cause of action—not whether they are true. (<i>Del E. Webb Corp. v. Structural Materials Co.</i> (1981) 123 Cal.App.3d 593, 604.) Hippo contends the third cause of action for Violation of the Elder Abuse and Dependent Adult Civil Protection Act fails because Hippo, as an insurance adjuster, cannot be liable for violation of the elder abuse statute based on the holding in <i>Strawn v. Morris Polich & Purdy, LLP</i> (2019) 30 Cal.App.5th 1087. It is not clearly shown from the allegations in the complaint that <i>Strawn</i> applies to Plaintiffs' claims against Hippo. Initially, as Plaintiffs point out, the complaint does not plead that Plaintiffs' claim was adjusted by Hippo's employees "licensed as independent insurance adjusters." No such allegation is contained in the pleading. The complaint pleads that Hippo and defendant Spinnaker Insurance Company (Spinnaker) "are affiliates and subsidiaries owned by their parent company, Hippo Holdings, Inc.," and that Defendants were "conducting the business of issuing and selling" the homeowner's insurance at issue. (Complaint, ¶¶ 5, 7.) The complaint also alleges that Defendants, which includes Hippo, took Plaintiffs' policy premiums with no intent of fully paying the benefits promised under the policy and wrongfully retained Plaintiffs' policy benefits by denying payment or paying less than was due. (Complaint, ¶ 45.) The allegations that Spinnaker and Hippo are affiliates and subsidiaries acting under a common parent company could suggest that Hippo had – as Plaintiffs put it – a financial stake in premiums collected and claims not paid and was thus acting for its own individual advantage. Under these circumstances, <i>Strawn</i> may not apply. (See <i>Strawn, supra</i>, 30 Cal.App.5th at 1101-1102.) Plaintiffs are correct that the issue of who specifically adjusted Plaintiffs' claim, in what capacity, and under which license is something that cannot be resolved on demurrer. Based on the foregoing, the demurrer is OVERRULED. <i>Counsel for Plaintiffs shall give notice.</i>
12.	Nicholson v. Bland 25-1461757	Before the Court is an unopposed demurrer by Plaintiff Paul Nick Nicholson to the answer by Defendant Daniel Bland to the First Amended Complaint (FAC). For the reasons set forth herein, the Demurrer is SUSTAINED as to the 2nd – 6th and 12th – 16th affirmative defenses and OVERRULED as to the remaining defenses. Defendant is granted 14 days leave to file an amended answer.

		<i>Code of Civil Procedure §431.30(b)</i> states: "The answer to a complaint shall contain: (1) The general or specific denial of the material allegations of the complaint controverted by the defendant. (2) A statement of any new matter constituting a defense." Section <i>§430.20</i> states: "A party against whom an answer has been filed may object, by demurrer as provided in Section 430.30, to the answer upon any one or more of the following grounds: (a) The answer does not state facts sufficient to constitute a defense." A defendant raising new matters in an answer must allege ultimate facts sufficient to prove the defense with the same level of detail that a plaintiff is required to allege ultimate facts to support a cause of action in a complaint. (<i>FPI Development, Inc. v. Nakashima</i> (1991) 231 Cal.App.3d 367, 384.) "Generally speaking, the determination whether an answer states a defense is governed by the same principles which are applicable in determining if a complaint states a cause of action. [Citation.]" "There are, however, certain important differences between these two kinds of demurrer. An important difference is that in the case of a demurrer to the answer, as distinguished from a demurrer to the complaint, the defect in question need not appear on the face of the answer. The determination of the sufficiency of the answer requires an examination of the complaint because its adequacy is with reference to the complaint it purports to answer." (<i>South Shore Land Co. v. Petersen</i> (1964) 226 Cal.App.2d 725, 733.) The Court finds that the 2nd – 6th and 12th – 16th affirmative defenses raise new matters and fail to allege sufficient facts in support thereof. Accordingly, the demurrer is SUSTAINED as to these causes of action. The Court finds that the 1st, 7th-11th, and 17th-18th causes of action do not raise new matters. The 1st cause of action does not require further facts be pled. (<i>Code of Civil Procedure §430.80.</i>) The 18th affirmative defense is merely a statement and not an affirmative defense. The remaining defenses are responses to allegations raised by the complaint and are denials of plaintiff's allegations regarding formation of the contract. Accordingly, the demurrer is OVERRULED as to these causes of action. <i>Plaintiff shall give notice.</i>
13.	Hood v. Hyundai Motor America 25-1513152	(Withdrawn)
14.	Kumar v. Children's Hospital of Orange County 23-1361438	Before the Court at present is the Motion for Summary Judgment filed on 3/12/26 by Defendant Kishan Patel, M.D. ("Patel"). The Motion is directed to the First Amended Complaint ("FAC") filed on 11/16/23 by "Arjun Kumar, a minor, by and through his Guardian Ad Litem Pavan Kumar" ("Plaintiff"). Patel was named therein as Doe 1 (ROA 59). The FAC asserts a single claim for medical negligence. On such a claim, when a defendant moves for summary judgment and supports the